TERMS OF BUSINESS FOR THE INTRODUCTION OF PERMANENT CANDIDATES

These terms are made between Harrowgate Talent Partners Ltd, a company registered in England and Wales under number 00000000 ("Harrowgate" or "the Agency"), and the client whose details are set out in Schedule 1 ("the Client"). They apply to every Introduction made by the Agency to the Client and override any terms the Client may put forward.

1. Definitions. "Candidate" means a person Introduced by the Agency to the Client. "Introduction" means the Client's receipt of a Candidate's CV or other information identifying the Candidate, or the Client's interview of a Candidate, in each case from the Agency. "Engagement" means the employment or engagement of a Candidate by the Client or any associated company, directly or through a third party, on a permanent, temporary or contract basis. "Remuneration" means the Candidate's gross annual base salary plus guaranteed bonuses and allowances for the first twelve months.

2. Agency's services. The Agency will use reasonable endeavours to Introduce suitable Candidates for the vacancies the Client notifies. The Agency checks identity and right to work and takes up references where the Candidate consents, but the Client remains responsible for satisfying itself as to the suitability of any Candidate, including any qualifications, medical checks or criminal record checks required for the role.

3. Client's obligations. The Client will tell the Agency promptly of any offer made to, or accepted by, a Candidate, and of the Remuneration agreed. Introductions are confidential: the Client may not pass a Candidate's details to any third party. If it does, and that third party Engages the Candidate within twelve months, the Client will pay the fee as though it had Engaged the Candidate itself.

4. Fees. The Client will pay a fee on the Engagement of any Candidate within twelve months of the Introduction, calculated as a percentage of the Candidate's Remuneration as set out below. Where the Remuneration is not known, the fee will be calculated on the Agency's reasonable estimate for the role. VAT is payable in addition.

Candidate's Remuneration	Fee (% of Remuneration)
Up to £39,999	15%
£40,000 to £69,999	18%
£70,000 and above	20%

5. Invoicing and payment. The Agency will invoice the fee on the Candidate's start date. Invoices are payable within fourteen (14) days. The Agency may charge interest on late payments under the Late Payment of Commercial Debts (Interest) Act 1998.

6. Rebate. If the Candidate's employment ends within the periods below, other than by redundancy or the Client's breach, the Agency will refund the percentage of the fee shown, provided the fee was paid on time and the Client notifies the Agency in writing within seven (7) days of the employment ending.

Employment ends within	Refund of fee
0 to 4 weeks of start	100%
5 to 8 weeks of start	50%
9 to 12 weeks of start	25%

7. Withdrawn offers. If the Client withdraws an offer after the Candidate has accepted it, the Client will pay a cancellation fee of 25% of the fee that would have been payable on Engagement.

8. Liability. The Agency is not liable for any loss, expense or damage arising from the Introduction or Engagement of a Candidate, or from any act or omission of a Candidate, except to the extent caused by the Agency's negligence. Nothing in these terms limits liability for death or personal injury caused by negligence or for fraud.

9. Data protection. Each party will comply with the UK GDPR and the Data Protection Act 2018 in respect of Candidate personal data and will process it only for the purposes of recruitment. The Client will delete the details of unsuccessful Candidates within six months.

10. Conduct of Employment Agencies. The Agency acts as an employment agency within the meaning of the Conduct of Employment Agencies and Employment Businesses Regulations 2003 when Introducing Candidates

for permanent roles.

11. General. These terms, together with Schedule 1, are the entire agreement between the parties. No variation is effective unless agreed in writing by a director of the Agency. These terms are governed by the law of England and Wales and the courts of England and Wales have exclusive jurisdiction.

Schedule 1 – Client Details

To be completed by the Client and returned with this agreement.

Client legal name _____

Registered office _____

Company number _____

Hiring contact _____

Invoice email _____

Purchase order no. (if any) _____

Signed by the parties' authorised signatories:

Party	Signature	Date
For and on behalf of **Harrowgate Talent Partners Ltd**		
For and on behalf of **the Client**		

Print name and position of Client signatory: _____